



Republic of the Philippines
MUNICIPALITY OF PRIETO DIAZ
Prieto Diaz, Sorsogon 4711
LGU TIN: 000794065
Email Address: sbprietodiaz@gmail.com



Office of the Secretary to the Sangguniang Bayan

1st Endorsement
February 20, 2024

OFFICE OF THE SANGGUNIANG BAYAN
PRIETO DIAZ, SORSOGON 4711

RELEASED

DATE: 02/20/24 TIME: 9:30 AM
BY: [Signature] REF. NO. 061

Respectfully transmitted to **Hon. ROMEO D. DOMASIAN**, Municipal Mayor, the herein attached Resolution No. 040-2024 entitled: **"A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN, TO ENTER INTO A MEMORANDUM OF UNDERSTANDING (MOU) WITH THE DEPARTMENT OF INFORMATION AND COMMUNICATIONS TECHNOLOGY (DICT) REPRESENTED BY ITS SECRETARY, HON. IVAN JOHN E. UY, FOR THE DIGITALIZATION / COMPUTERIZATION / AUTOMATION OF PUBLIC SERVICES IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON"** for his information and appropriate action.

BERNADETTE R. ESPEÑA – YAO
Secretary to the Sangguniang Bayan

Cc:
- Ms. Gemma Ferrer
Municipal Treasurer

Noted
RET G. Domasian
Received by
02-21-2024
MTD

FEB 21 2024



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Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON FEBRUARY 19, 2024 AT ITS SESSION HALL

PRESENT:

Hon. Joseph H. Yap, Jr.	S. B. Member, Presiding Officer Pro tempore
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Rodolfo E. Diolata	-do-
Hon. Juan D. Ebid	-do-
Hon. Albert D. Destura	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member
Hon. Rene Joseph D. Domasian	PPSK Pres./S.B. Member

ABSENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/on leave
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RESOLUTION NO. 040-2024

Introduced by the council

A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN, TO ENTER INTO A MEMORANDUM OF UNDERSTANDING (MOU) WITH THE DEPARTMENT OF INFORMATION AND COMMUNICATIONS TECHNOLOGY (DICT) REPRESENTED BY ITS SECRETARY, HON. IVAN JOHN E. UY, FOR THE DIGITALIZATION / COMPUTERIZATION / AUTOMATION OF PUBLIC SERVICES IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

WHEREAS, the DICT is mandated to be the primary policy planning, coordinating, implementing, and administrative entity of the Executive Branch of the government that will plan, develop, and promote the national ICT development agenda pursuant to RA No. 10844;

WHEREAS, the DICT, pursuant to its mandate under RA No. 10844, E-Government objectives in particular, and national objectives in general, is currently in the process of developing applications and systems in order to harmonize and coordinate all national ICT plans and initiatives to ensure: 1) knowledge, information and resource-sharing; 2) database-building; and 3) agency networking linkages among government agencies;

WHEREAS, the LGU of Prieto Diaz in its utmost support of the digitalization of the government, manifested its interest to computerize and automate the provision of its public services;

WHEREAS, the DICT, shall among others, continue to develop and enhance existing applications and systems to ensure effective and efficient delivery of government services to the public;

WHEREAS, the LGU of Prieto Diaz shall, among others, serve as the digital transformation partner of DICT and shall collaborate with DICT in ICT-related initiatives and programs to ensure interoperability across systems and applications within the LGU;

WHEREAS, the Sangguniang Bayan is cognizant that there shall be no exchange of funds between the 2 parties. It is understood that the cost of the performance of parties' respective responsibilities, under this MOU, shall be for the separate accounts of the parties;

WHEREAS, on motion of Hon. Antonio Emano, duly seconded by Hon. Albert Destura;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo D. Domasian, to enter into a Memorandum of Understanding (MOU) with the Department of Information and Communications Technology (DICT) represented by its Secretary, Hon. Ivan John E. Uy, for the digitalization / computerization / automation of public services in the municipality of Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Hon. Romeo D. Domasian, Municipal Mayor, copy furnished Ms. Gemma Ferrer, Municipal Treasurer and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. JOSEPH H. YAP, JR.
S. B. Member, Presiding Officer Pro-tempore

MEMORANDUM OF UNDERSTANDING

KNOW ALL MEN BY THESE PRESENTS:

This **MEMORANDUM OF UNDERSTANDING ("MOU")**, made and entered into this _____ day of _____ 2024 by and among:

The **DEPARTMENT OF INFORMATION AND COMMUNICATIONS TECHNOLOGY**, a government agency duly organized and existing by virtue of Republic Act (R.A.) No. 10844, with principal office address at DICT Bldg., C.P. Garcia Avenue, UP Diliman, Quezon City, represented by its Secretary, **IVAN JOHN E. UY**, and hereinafter referred to as "**DICT**";

– and –

The **[NAME OF AGENCY]**, duly organized and existing under and by virtue of the laws of the Republic of the Philippines, with principal office at Address, herein represented by its **[NAME]**, hereinafter referred to as "**ABBREVIATION**";

The **DICT** and **ABBREVIATION** are hereinafter collectively referred to as "**Parties**" and individually as "**Party**".

WITNESSETH, That:

WHEREAS, the **DICT** is mandated to be the primary policy planning, coordinating, implementing, and administrative entity of the Executive Branch of the government that will plan, develop, and promote the national ICT development agenda pursuant to RA No. 10844;

WHEREAS, the **DICT**, pursuant to its mandate under RA No. 10844, E-Government objectives in particular, and national objectives in general, is currently in the process of developing applications and systems in order to harmonize and coordinate all national ICT plans and initiatives to ensure: 1) knowledge, information and resource-sharing; 2) database-building; and 3) agency networking linkages among government agencies;

WHEREAS, the **ABBREVIATION** in its utmost support of the digitalization of the government, manifested its interest to computerize and automate the provision of its public services;

WHEREAS, the **DICT** and **ABBREVIATION** agree to enter into this agreement in order to establish cooperation, partnership and teamwork between and among them;

WHEREAS, the **DICT** and **ABBREVIATION** would like to enter into an understanding to integrate their existing applications into the applications and systems being developed by **DICT**;

NOW, THEREFORE, for and in consideration of the foregoing premises, the **Parties** hereto, do mutually agree to the following:

I. PURPOSE

This MOU is a declaration of understanding by the Parties of their intention to coordinate with each other to ensure a harmonized, integrated, and interoperable Information and Communications Technology systems and application of the **DICT** and **ABBREVIATION**.

II. SCOPE

This MOU intends to cover ICT applications and systems, as may be identified by the parties, that may need to be integrated and interconnected with the systems and applications of the **DICT**.

III. ORGANIZATIONAL COMMITMENTS/RESPONSIBILITIES OF THE PARTIES

1. Responsibilities of DICT

- a. The DICT shall continue to develop and enhance existing applications and systems to ensure effective and efficient delivery of government services to the public;
- b. The DICT shall ensure that the existing applications and systems of the ~~ABBREVIATION~~ should be integrated with the applications and systems of the former; and
- c. The DICT shall develop additional applications and systems for ~~ABBREVIATION~~, if needed, and ensure its smooth integration to the applications and systems of the former.

2. Responsibilities of ~~ABBREVIATION~~

- a. The ~~ABBREVIATION~~ shall serve as the digital transformation partner of DICT; and
- b. The ~~ABBREVIATION~~ shall collaborate with DICT in ICT-related initiatives and programs to ensure interoperability across systems and applications within the ~~ABBREVIATION~~.

IV. FUNDING ARRANGEMENTS

There shall be no exchange of funds between the Parties. It is understood that the cost of the performance of Parties' respective responsibilities, under this MOU, shall be for the separate accounts of the Parties.

V. IMPLEMENTATION OF SPECIFIC PROJECTS AND ACTIVITIES PURSUANT TO THE MOU

Any specific activities and/or projects to be implemented pursuant to this MOU shall be covered by a separate agreement between DICT and ~~ABBREVIATION~~, to be agreed upon in writing by the Parties. The agreement will include terms such as but not limited to funding requirements, procurement of technical personnel, if necessary, intellectual property rights and other terms and conditions that are deemed applicable in the transaction. Any separate agreement which will be entered into pursuant to this MOU will form an integral part of the MOU, and vice-versa. If there is any conflict between the provisions of the subsequent agreement and this MOU, the provision of the subsequent agreement shall prevail to the extent of the project and activities covered by said subsequent agreement.

If necessary, the Parties shall execute a data-sharing agreement and/or non-disclosure agreement, as may be applicable.

VI. EFFECTIVITY AND TERMINATION

1. This MOU takes effect upon signing and shall remain effective until terminated by mutual agreement of the Parties in writing. Either Party may terminate this MOU with or without cause through a written notice to the other Party at least thirty (30) days before the intended date of termination.
2. The Termination of this MOU will not affect the implementation of agreements entered into pursuant to Item V, which were executed prior to the MOU's termination.

VII. AMENDMENTS

Both Parties may recommend in writing any revision, amendment, or addition of any terms or conditions in this MOU, subject to prior notification to the other Party and shall be deemed approved when confirmed in writing. Such amendments or revisions shall have the same effect as the original understanding and will form an integral part hereof.

VIII. RELATIONSHIP AND BINDING EFFECT

This MOU does not create a joint venture, partnership, or principal-agent relationship between the Parties, and nothing in this MOU may be used to imply such a relationship. Neither Party has the right, power, or authority to obligate or bind the other Party in any manner, unless authorized in writing by the other Party in a specific instance.

This MOU serves only as a record of the Parties' intentions and does not constitute or create any legally binding or enforceable obligations, express or implied, under domestic or international law and will not give rise to any legal process.

IX. NOTICES

- Any notice, approval, consent, request or other communication required or permitted to be given or made under this MOU shall be in writing and delivered by registered mail to the physical address or sent to the electronic mail address of the respective Party's representative as shown below or to such other physical address or electronic mail address as may have been notified by a Party to the other Party and will be deemed to be duly given or made when delivered to the recipient at such physical address or electronic mail address:

DICT	ABBREVIATION
IVAN JOHN E. UY Department of Information and Communications Technology DICT Central Office, C.P. Garcia Avenue, Diliman, Quezon City 1101 Philippines 8-920-0101 ivan.uy@dict.gov.ph	NAME OF HEAD OF AGENCY AGENCY ADDRESS Contact details Email address

- Each Party may change its contact person for purposes of this MOU upon written notice to the other Party within a reasonable period.

X. SEVERABILITY

If any provision of this MOU or any document executed in connection herewith is declared invalid, illegal or unenforceable in any respect by a court of competent jurisdiction, the validity, legality, or enforceability of the remaining provisions of such documents shall not in any way be affected or impaired.

IN WITNESS THEREOF, the Parties herein have set their hands this ____ day of
____ 2024 in ____.

DEPARTMENT OF INFORMATION
AND COMMUNICATIONS
TECHNOLOGY

AGENCY NAME

By:

By:

IVAN JOHN E. UY
Secretary

NAME
Position

Signed in the presence of:

For DICT:

For **REPRESENTATION**:

DAVID L. ALMIROL, JR.
Undersecretary for E-Government

ACKNOWLEDGMENT

REPUBLIC OF THE PHILIPPINES)
QUEZON CITY) S.S.

BEFORE ME, a Notary Public, for and in Quezon City, Philippines, this _____ day of _____ 2024, personally appeared the following persons, personally known to me (or proved to me on the basis of competent evidence of identity) to be the same persons who executed the foregoing instrument and they acknowledged to me that the same is their free and voluntary act and deed, and the free and voluntary act and deed of the corporations or entities herein represented to wit:

Name	Gov't Issued ID (with date/place of issue)
IVAN JOHN E. UY	
NAME	

This instrument refers to a Memorandum of Understanding, consisting of five (5) pages including this page on which this acknowledgment is written.

WITNESS MY HAND AND SEAL on the date and at the place first above mentioned.

NOTARY PUBLIC

Doc. No. _____;
Page No. _____;
Book No. _____;
Series of 2024.